6

Emails

6.1 Conceptualisation and a Brief History of Emails

'Electronic mail' (email) is an electronic system for exchanging messages over the Internet. The common usage of the term 'email' refers to individual electronic messages, and usually only to the textual content of the messages and their attachments.[1] This chapter will adopt this terminology and refer to email messages (hereinafter email) in terms of their content. Email accounts (hereinafter accounts) enable access to emails, and an analogy usually used here is that of letters. Along this line, accounts are some form of 'physical' representation of emails, enabling and regulating access to their content, just as paper is a physical representation of letters and their content, defining access to this content. This analogy will be used and evaluated in more detail later in this chapter.

The history of emails started in 1965 when Van Vleck of MIT invented 'the first popular computer-based electronic mail service as a posting/delivery construct with addressing'.[2] In the subsequent twenty years, many other system components (e.g. transfer protocol, content or user feature) were developed to create the system as it is nowadays. The technical features of the system are as follows: flexible form (plain text, right format, attachments, pictures, videos); asynchronous character (people send and receive messages on their own time); broadcast (the ability to send messages to many

[1] See D Hansen, B Shneiderman and M Smith, *Analyzing Social Media Networks with NodeXL: Insights from a Connected World* (Morgan Kaufmann 2010) 106; J Shen et al., 'A comparison study of user behavior on Facebook and Gmail' (2013) 29 *Computers in Human Behavior* 2650, 2650–5.

[2] See EmailHistory.org, 'Email milestones timeline', ed. dcrocker (6 September 2012) <http://emailhistory.org/Email-Timeline.html> last accessed 1 August 2021; T Van Vleck, 'The history of electronic mail' (1 February 2010) <http://www.multicians.org/thvv/mail-history.html> last accessed 1 August 2021.

people simultaneously); push technology (the sender decides on the content and timing of a message); and threaded conversations.[3]

Email still represents the core of all online communications, along with social networking. Usage of emails is relatively evenly spread across different age groups, making it the most used activity online in the UK and US.[4] Today, communication is almost impossible to imagine without this quick, relatively reliable and convenient system used for various purposes, such as communication, task and contacts management, and sharing of documents, pictures, videos and other content as attachments, both for personal and business purposes.[5] One could argue that social media and instant messaging will gradually supplant emails in online communications. However, research has found that similarly to emails complementing telephone and face-to-face communication, the use of social networks has complemented the use of emails so far,[6] without resulting in a significant decrease in their use.

The consumer market is dominated by the email providers Google (Gmail), Microsoft (Outlook.com) and Yahoo! (Mail).[7] For this reason, these providers' terms will be the focus of the analysis in subsequent sections.

Notwithstanding the importance and the value of emails, the focus of this chapter will be on one particular aspect of emails, that is, whether an email is an asset capable of post-mortem transmission. Therefore, the analysis will mainly look at the nature of what might be most valuable for users: the content of emails and users' accounts. The chapter will not discuss communications and metadata ('data about data'[8]) or the email system and technical

[3] Hansen et al. (n 1) 106–7.

[4] For the US, see Statista, 'Popular digital activities among Internet users in the United States 2019' <https://www.statista.com/statistics/184559/typical-daily-online-activities-of-adult-internet-users-in-the-us/> last accessed 1 August 2021. For the UK, see Office for National Statistics, 'Internet access – households and individuals, 2020' (8 August 2020) <https://www.ons.gov.uk/peoplepopulationandcommunity/householdcharacteristics/homeinternetandsocialmediausage/datasets/internetaccesshouseholdsandindividualsreferencetables> last accessed 1 August 2021. Email is still the most popular activity online in general.

[5] For more, see Hansen et al. (n 1) 105–25.

[6] See Shen et al. (n 1) 2653; R Kraut et al., 'Internet paradox revisited' (2002) 58(1) *Journal of Social Issues* 49; B Wellman et al., 'Does the Internet increase, decrease, or supplement social capital? Social networks, participation, and community commitment' (2001) 45(3) *American Behavioral Scientist*436.

[7] N Gilbert, 'Number of email users worldwide 2021/2022: Demographics & predictions' *FinancesOnline* <https://financesonline.com/number-of-email-users/> last accessed 1 August 2021.

[8] See for example L Greenberg, 'Metadata and the world wide web' (2003) *Encyclopedia of Library and Information Science* 1876.

aspects. Instead, it will aim to question the legal nature of emails, represented by their content.

The analysis will focus on copyright (users' rights to control the original content of emails they create), property in information (whether users generally own information contained in their emails) and personal data (whether users control or own data relating to them as an identified or identifiable person).[9]

In addition to the first and essential question of the legal nature of emails, further problems around the transmission of emails on death identified in this chapter are the following: access to a user's account (regulated by service provider contracts, ToS); PMP (protection of the deceased's privacy); criminal legislation (laws on unauthorised access to computer systems); potential conflicts between wills, intestate succession laws and technological solutions to the transmission of emails (e.g. Google Inactive Account Manager); and jurisdiction and conflicts between the interests of the deceased, their family and friends. Most of these problems will be looked at in the respective sections below. However, the focus will be on the legal nature of emails, access and the conflicts between wills, succession laws and technology. The jurisdiction and criminal law issues will be mentioned only briefly to enable an in-depth analysis of the other issues, and because the focus of this book is mainly on civil law issues so criminal and conflicts of law issues are acknowledged but not dealt with in depth.

Therefore, the chapter will determine whether emails can be considered property or IP or if some other form of protection is better suited to them. The analysis will expand the findings in my earlier work.[10] Further, after exploring these issues, the analysis will touch upon the current allocation of ownership in emails by contracts and the issues surrounding potential post-mortem transmission. Eventually, the aim is to propose a solution for post-mortem transmission, notwithstanding legal issues and potential technological solutions.

6.2 Illustrations Through Case Law

In order to bring the problems around post-mortem transmission of emails closer to the reader and following the methodology established in the previous chapter, this section will first present the limited case law. The case law originates from the US and does not solve the issues identified in this chapter. Instead, these cases drew media and social attention to the issues of

[9] See the definition provided by the Article 4(1) of the General Data Protection Regulation.

[10] E Harbinja, 'Emails and death: Legal issues surrounding post-mortem transmission of emails' (2019) 43(7) *Death Studies* 435.

post-mortem transmission of digital assets generally, initiating further discussions in academic circles and some regulatory attempts (again, in the US).

US and European media widely reported the US case *In re Ellsworth*.[11] We have mentioned this case briefly in previous chapters, but as it concerns email primarily, we will present it here. In this case Yahoo!, as an email provider, initially refused to give the family of a US Marine, Justin Ellsworth, killed in action in Iraq, access to his account. It referred to its ToS, which, according to Yahoo!, were designed to protect the user's privacy by forbidding access to third parties on death.[12] Yahoo! also argued that the US Electronic Communications Privacy Act of 1986 prohibits it from disclosing users' personal communications without a court order.[13] The family claimed that as his heirs, they should have access to his emails and the entire account, his sent and received emails, as his last words. Yahoo!, on the other hand, had a non-survivorship policy, and there was a danger that Ellsworth's account could have been deleted. The judge in this case, however, allowed Yahoo! to enforce its privacy policy and did not order the transfer of the account login and password. Instead, he made an order requiring Yahoo! to enable access to the deceased's account by providing the family with a CD containing copies of the emails in the account.[14] As reported by the media, Yahoo! initially provided only the emails received by Justin Ellsworth on a CD, and after the family complained again, it allegedly subsequently provided paper copies of the sent emails.[15] This case clearly illustrates most of the issues in the post-mortem transmission of emails mentioned in the previous section (i.e. PMP, access, conflict of interests of the deceased and their family).

[11] *In re Ellsworth*, No 2005-296, 651-DE (Mich Prob Ct 2005). See for example BBC News, 'Who owns your e-mails?' (11 January 2005) <http://news.bbc.co.uk/1/hi/magazine/4164669.stm> last accessed 1 August 2021; P Sancya, 'Yahoo will give family slain Marine's e-mail account' *USA Today* (21 April 2005) <http://usatoday30.usatoday.com/tech/news/2005-04-21-marine-e-mail_x.htm?POE=TECISVA> last accessed 1 August 2021. See the discussion in T Baldas, 'Slain soldier's e-mail spurs legal debate: Ownership of deceased's messages at crux of issue' (2005) 27 *National Law Journal* 10, 10.

[12] Yahoo!, 'Terms of service' <http://info.yahoo.com/legal/uk/yahoo/utos-173.html> last accessed 1 August 2021.

[13] See A Kulesza, 'What happens to your Facebook account when you die?' *Blog* (3 February 2012) <http://blogs.lawyers.com/2012/02/what-happens-to-facebook-account-when-you-die/> last accessed 1 August 2021; Electronic Communications Privacy Act, 18 USC §§ 2510 *et seq*.

[14] See Associated Press release, *justinellsworth.net* (21 April 2005) <http://www.justinellsworth.net/email/ap-apr05.htm> last accessed 1 August 2021.

[15] See BBC News (n 11); Sancya (n 11).

Edwards and Harbinja provide a few possible interpretations of the case.[16] One interpretation is that Yahoo! owned the copies of the emails stored on its servers but was required by the court order to make the information in them available. For this option, justification can be found in the traditional division of rights in letters, where Yahoo! would own the emails (as a physical representation), but the deceased, as an author, owned the copyright, transferred subsequently to their heirs. The heir would have the rights of copyright holders. The second interpretation is to regard the deceased as the owner of the emails while alive, which then could be transmitted to the heirs of the deceased on death.[17] Edwards and Harbinja regard this option as less likely, as the court would then have considered the rights of the heirs as overriding the terms and conditions entered into by the deceased, ordering full access to the account. This did not happen, however, and the court only ordered the provision of the emails' content. It can be concluded that the court found Yahoo!'s ownership of the account and the heirs' right to access the content of emails. Therefore, the case left many questions open and provided little guidance and no principles that could be applied subsequently (concerning property, IP and privacy).[18]

A subsequent is case *Marianne Ajemian, Co-administrator & Another v Yahoo!, Inc.*[19] In this instance, the plaintiffs, co-administrators of their brother John Ajemian's estate, brought the action in the Probate and Family Court in Massachusetts, requesting, *inter alia*, a declaration that emails John had sent and received using a Yahoo! account were property of his estate. A probate judge dismissed the complaint, concluding that a forum selection clause required that suit be brought in California. The Appeals Court of Massachusetts reversed the first instance judgment, ordering further proceedings by the Probate Court, where the question of ownership of emails, amongst others, should be decided. Yahoo!, similarly to the Ellsworth case, contended that the Stored Communications Act[20] prohibited disclosure of the contents of the account to the administrators of Ajemian's estate. It remains to be seen whether the court will follow the Ellsworth case logic or be more

[16] L Edwards and E Harbinja, '"What happens to my Facebook profile when I die?": Legal issues around transmission of digital assets on death' in C Maciel and V Pereira (eds), *Digital Legacy and Interaction: Post-Mortem Issues* (Springer 2013) 115.

[17] See ibid. 121.

[18] See similarly J Darrow and G Ferrera, 'Who owns a decedent's e-mails: Inheritable probate assets or property of the network?' (2006) 10 *New York University Journal of Legislation and Public Policy* 281, 308; J Atwater, 'Who owns email? Do you have the right to decide the disposition of your private digital life?' (2006) *Utah Law Review* 397, 399.

[19] 2013 WL 1866907 (Mass App Ct 2013), No 12-P-178.

[20] 18 USC §§ 2701 *et seq.*

explicit and conclude that there are property rights in emails and whether they form a part of the account holder's estate.

There are currently no similar cases in the UK that would provide some guidance or even initiate discussions on the post-mortem issues. However, some more general guidance in relation to the legal nature of emails can be found in a recent English case that tackles the issue of property in emails. In *Fairstar Heavy Transport NV* v *Adkins*[21] Justice Edwards-Stuart concluded that emails could not be considered property. The case concerned a commercial dispute between Mr Adkins, the company's ex-employee, and the company's new owners. The dispute involved important emails sent to Mr Adkins, which had been forwarded to his private email address and deleted from the company server. The company claimed that the emails should be declared the property of the company. Referring to previous case law relating to the status of information as property in the context of letters,[22] Justice Edwards-Stuart identified a distinction between a physical medium and the information it carried, noting that only a physical object (paper) can be owned.[23] Justice Edwards-Stuart's analysis illustrates five different scenarios that would be the likely results if an email were considered capable of being property. The sensible conclusion the judge made was that, due to practical reasons, and the fact that the misuse of information contained in emails is otherwise protected (confidential information, contracts, copyright), 'There are no compelling practical reasons that support the existence of a proprietary right – indeed, practical considerations militate against it.'[24] Subsequently, the Court of Appeal recognised the difficulties that property in information encounters conceptually. The court wisely avoided this discussion and decided that the real issue in the case was that of agency. Therefore, the first instance decision provides some guidance and an indication that emails are not considered property in black-letter English law. At first glance, this makes it clear that we need to consider some other legal mechanisms to define the nature of emails, such as copyright, contracts and privacy. This chapter will discuss all these issues and provide a black-letter and normative analyses of property in information (i.e. email content).

[21] [2012] EWHC 2952 (TCC). See the detailed analyses in Edwards and Harbinja (n 16).

[22] See for example *Philip* v *Pennell* [1907] 2 Ch 577; *Boardman* v *Phipps* [1967] 2 AC 46; *Coogan* v *News Group Newspapers Ltd and Mulcaire* [2012] EWCA Civ 48; *Force India Formula One Team* v *1 Malaysian Racing Team* [2012] EWHC 616 (Ch).

[23] *Fairstar Heavy Transport NV* v *Adkins* [2012] EWHC 2952 (TCC) para 58. See also Lord Upjohn in *Boardman* v *Phipps* [1967] 2 AC 46, 127, 275; Lord Walker of Gestingthorpe in *Douglas* v *Hello! Ltd* [2008] 1 AC 1; *Force India Formula One Team* v *1 Malaysian Racing Team* [2012] EWHC 616 (Ch).

[24] *Fairstar Heavy Transport NV* v *Adkins* [2012] EWHC 2952 (TCC) para 69.

6.3 Legal Nature of Emails

In order to answer the main research question, whether emails are transmissible on death, the chapter will consider two alternative paradigms as to the nature of emails: 1) emails are protected by copyright as literary or artistic works; and 2) they are property. *Prima facie*, emails are perceived mainly as literary works created by their authors, the email senders. Therefore, copyright appears to be one of the most obvious answers when determining the legal nature of emails. The following section will thus discuss copyright in emails, concerning transmission on death. Subsequently, the analysis will embark on property issues in information and personal data (a type of email content not susceptible to copyright protection).[25]

(a) Copyright in Emails and Post-Mortem Transmission

Emails contain a lot of potentially or actually copyrighted materials that users share with different recipients. These works can be protected by copyright as literary or musical works.[26] Although the attachments potentially have enormous value for the users, both economically and emotionally, the focus of this chapter is not on the copyrightable or copyrighted works in the form of attachments that have already been published elsewhere. These works may include books (published or not), stories, videos, photographs and music, among others. The reason behind this decision is that, whereas some attachments may not be available anywhere else but only as emails (unpublished works), a majority of authored works will probably be available and published elsewhere (offline and online).[27] In addition, if they are available elsewhere offline and/or online, these works do not represent digital assets *stricto sensu*, as defined in the Introduction to this book. They will then represent the physical manifestation of a part of a digital asset. For instance, there is the possibility that emails can be printed or saved on the recipient's or sender's computer. Again, these materials are either a physical manifestation of digital assets or a fraction of an asset saved and stored in a digital form. For these materials, the transmission is clear, and there is no need to discuss it in this book (copyright lasts for seventy years after the author's death and transmits

[25] These findings develop my earlier work in Harbinja, 'Emails and death' (n 10).

[26] Copyright, Designs and Patents Act 1988, s 3; US Copyright Code 17 USC § 101.

[27] Published works encompass Internet publications as well. For definitions of publication, see for example UK Copyright, Designs and Patents Act 1988, c 48, s 175; US Copyright Code 17 USC § 101; Article 3 of the Berne Convention for the Protection of Literary and Artistic Works of 9 September 1886, revised at Paris 24 July 1971, 25 UST 1341, 828 UNTS 221. See also generally D McCallig, 'Private but eventually public: Why copyright in unpublished works matters in the digital age' (2013) 10:1 *SCRIPTed* 39, 43–4.

to their next of kin). The focus, therefore, will be on the unpublished content of emails, either in the form of an attachment or as text, and what happens to copyright in this work post-mortem. Therefore, an email as a digital asset will be looked at holistically, meaning as part of all of the emails included in a user's account. Also, photographs will not be discussed in depth here. This type of content is much more associated with social networks and therefore is analysed in Chapter 4.

Copyright in the EU, UK and the US subsists in unpublished works for a duration equal to copyright in published works, that is, seventy years after the author's death.[28] Historically, at some point, copyright protection of unpublished work was perpetual in the common law jurisdictions, the UK and US.[29] This has changed, and the duration has been harmonised at the EU level and with US law.[30] Additionally, a fundamental shift in the EU copyright law resulted in incentivising the publication of unpublished works. The Copyright Term Directive, and consequently UK law,[31] awarded twenty-five years of copyright protection for the first lawful publication of work previously unpublished after its copyright protection of seventy years had expired.[32]

Emails and attachments unpublished elsewhere and not existing in the physical form defined by the courts, therefore, could potentially qualify for copyright protection as literary works primarily.[33] Publishing to a limited number of people is not making the content available to the public, and therefore emails would not meet the requirement of publication in the UK

[28] Article 1 of Directive 2006/116/EC of the European Parliament and the Council of 12 December 2006 on the term of protection of copyright and certain related rights (codified version) [2006] OJ L372/12.

[29] In the UK, until the adoption of the Duration of Copyright and Rights in Performances Regulations 1995 SI No 3297; in the US until the 1976 Copyright Act, when unpublished works were brought under federal jurisdiction. See for example ET Gard, 'January 1, 2003: The birth of the unpublished public domain and its international consequences' (2006) 24 *Cardozo Arts & Entertainment Law Journal* 687, 697–702. On the other hand, Scots law, for instance, historically did not recognise copyright in unpublished works and interestingly, for letters in particular, the courts drew on the civilian *actio iniuriarum* and the common law idea of literary property to protect privacy in correspondence. See HL MacQueen, 'Ae fond kiss: A private matter?' in A Burrows, D Johnston and R Zimmermann (eds), *Judge and Jurist: Essays in Memory of Lord Rodger of Earlsferry* (Oxford University Press 2013).

[30] Council Directive 93/98/EEC of 29 October 1993 harmonizing the term of protection of copyright and certain related rights [1993] OJ L290/9; 1976 Copyright Act 17 USC § 302.

[31] Copyright and Related Rights Regulations 1996 SI No 2967 reg 16.

[32] Article 4 of Council Directive 93/98/EEC (n 30).

[33] Copyright, Designs and Patents Act 1988, s 3(1); US Copyright Code 17 USC § 101.

and US.[34] The content will have to meet the general copyright requirements of originality and fixation (recording in the UK).

Fixation or recording would not create a significant obstacle, as electronic fixation has been recognised as meeting the requirements.[35] US law mandates that work is fixed only 'when its embodiment in a copy . . . is sufficiently permanent or stable to permit it to be perceived, reproduced, or otherwise communicated for more than transitory duration'.[36] The focus of this definition is on the notion of 'a period of more than transitory duration'. The US courts have interpreted this in several cases, including *MAI Systems* v *Peak Computers*,[37] where the court confirmed that reproductions in random access memory (RAM) are copies fixed according to the Act. This finding is significant as RAM copies are not permanent and are present only while a computer is turned on.[38] In the UK, CDPA 1988 mandates that 'Copyright does not subsist in a literary, dramatic or musical work unless and until it is recorded, in writing or otherwise.'[39] Writing is further defined as 'any form of notation or code, whether by hand or otherwise and regardless of the method by which, or medium in or on which, it is recorded'.[40] The UK definition appears more straightforward than the US one, referring to any medium, therefore including digital recording. Accordingly, case law provides that 'an artistic work may be fixed in the source code of a computer program'.[41] Consequently, the fixation requirement is satisfied in the case of emails. Emails are stored 'more

[34] See the US case *Getaped.com, Inc* v *Cangemi*, 188 F.Supp.2d 398, 62 USPQ.2d (BNA) 1030 (SDNY 2002), where publication on the website, available to all, constituted publication for the purpose of US Copyright Code 17 USC § 101. This interpretation would arguably comply with the UK Copyright, Designs and Patents Act 1988, c 48, s 175.

[35] The Berne Convention (n 27) in Article 2 does not require fixation, but allows member states to use this requirement in their national law. The US and the UK both utilised this option. For the requirements set in the US, see the definition in Copyright Code 17 USC § 101. For the UK, see Copyright, Designs and Patents Act 1988, ss 3(2) and 178.

[36] US Copyright Code 17 USC § 101.

[37] 911 F.2d 511 (9th Cir 1993).

[38] Other cases following this line of argument are *Triad Systems* v *Southeastern Express Co*, 64 F.3d 1330 (9th Cir 1995); *Stenograph LLC* v *Bossard Associates, Inc*, 144 F.3d 96 (DC Cir 1998); *Advanced Computer Servs* v *MAI Systems*, 845 F.Supp.356 (ED Va 1994); *Intellectual Reserve, Inc* v *Utah Lighthouse Ministry, Inc*, 53 USPQ.2d 1425 (D Utah 1999); *Lowry's Reports, Inc* v *Legg Mason, Inc*, 271 F.Supp.2d 737 (D Md 2003); *Storage Technology Corp* v *Custom Hardware Engineering & Consulting, Inc*, 2004 US Dist LEXIS 12391 (D Mass 2004).

[39] Copyright, Designs and Patents Act 1988, s 3(2).

[40] Copyright, Designs and Patents Act 1988, s 178.

[41] *SAS Institute Inc* v *World Programming Ltd* [2013] RPC 17 para 29.

than transiently' on service providers' servers, 'in the cloud', and are more permanent than in RAM.

Originality would, arguably, create a more significant issue since many emails contain mere information, such as facts and personal data, and probably would not pass the threshold of originality developed by the UK and US courts (no matter how, admittedly, low the threshold is).[42] If we look at the cases involving copyright in letters, it is clear that business correspondence[43] or a solicitor's letter to a client[44] and personal letters[45] pass this threshold. This can mean that emails that consist of personal or professional correspondence and are of some length (even a few sentences) could satisfy the requirement of originality. A bigger problem would be, for instance, emails containing one sentence (e.g. 'I'll meet you at 9, OK'), data indicating time and place ('My address is: 256 Wonderland Lanes, Neverland, NL1 0PP'), or a single word ('Deal', 'Fine', 'Perfect'). Data protection laws clearly protect the address and other personal data examples. In the UK, single words are refused copyright protection (e.g. Exxon).[46] The courts, however, had different views in awarding copyright protection to titles and headlines. For instance, 'Splendid Misery', a book title, was denied copyright in *Dick* v *Yates*,[47] as was 'the Lawyer's Diary'

[42] For the US see *Burrow-Giles Lithographic Co* v *Sarony*, 111 US 53 (1884); *Feist Publications* v *Rural Telephone Service Company, Inc*, 499 US 340, 363 (1991). The most important UK cases are *Walter* v *Lane* [1900] AC 539; *Univ of London Press, Ltd* v *Univ Tutorial Press, Ltd* [1916] 2 Ch 601; *Interlego AG* v *Tyco Industries Inc* [1989] AC 217; *Express Newspapers Plc* v *News (UK) Ltd* [1990] FSR 359 (Ch D); *Newspaper Licensing Agency Ltd* v *Marks & Spencer plc* [2001] UKHL 38; [2002] RPC 4. See for example DJ Gervais, 'Feist goes global: A comparative analysis of the notion of originality in copyright law' (2002) 49 (4) *Journal of the Copyright Society of the U.S.A.* 949; P Samuelson, 'Originality standard for literary works under U.S. copyright law' (2001–2) 42 *American Journal of Comparative Law* Supplement 393; A Rahmatian, 'Originality in UK copyright law: The old "skill and labour" doctrine under pressure' (2013) 44(4) *International Review of Intellectual Property and Competition Law* 4; A Waisman, 'Revisiting originality' (2009) 31(7) *European Intellectual Property Review* 370–6.

[43] *Cembrit Blunn Ltd, Dansk Eternit Holding A/S* v *Apex Roofing Services LLP, Roy Alexander Leader* [2007] EWHC 111 (Ch). In *Tett Bros Ltd* v *Drake & Gorham Ltd* [1928–1935] MacG Cop Cas 492 (Ch, 1934), copyright in the following text (omitting 'Dear Sir' and 'Yours' etc.) was held to be infringed: 'Further to the writer's conversation with you of today's date, we shall be obliged if you will let us have full particulars and characteristics of "Chrystalite" or "Barex."'

[44] *Musical Fidelity Ltd* v *Vickers* [2002] EWCA Civ 1989; [2003] FSR 50.

[45] *Pope* v *Curl* (1741) 2 Atk 342; *Lord and Lady Perceval* v *Phipps* 2 V & B 19; *Macmillan & Co* v *Dent* [1907] 1 Ch 107.

[46] See the word 'Exxon' in *Exxon Corp* v *Exxon Insurance Consultants International Ltd* [1982] Ch 119.

[47] [1881] Ch 6.

in *Rose* v *Information Services Ltd.*[48] In other cases, however, headings were given the status of a literary work and were protected by copyright.[49] The European Court of Justice has subsequently provided some guidance on this issue in *Infopaq International A/S* v *Danske Dagblades Forening.*[50] The court opined that specific sentences or even parts of them could be copyrightable, depending on the originality of a respective sentence.[51] This decision has been followed by the English High Court and the Court of Appeal in *Newspaper Licensing Agency Ltd & Ors* v *Meltwater Holding BV & Ors.*[52] In the High Court, Proudman J applied the *Infopaq* test and concluded that 'headlines are capable of being literary works'.[53] The judge went even further, holding that 'it appears that a mere 11 word extract may now be sufficient in quantity provided it includes an expression of the intellectual creation of the author'.[54] The US Copyright Office, conversely, denies registration of copyright in names, titles and short phrases.[55]

It is interesting to look briefly at whether a string of emails would constitute a work of joint authorship. This has not been tested in courts, however, and as in the case of social networks, the conversation would lack an essential element of a high degree of integrity, so that the contributions of individual authors are 'inseparable or interdependent parts of a unitary whole'[56] or 'not distinct'.[57] Here, the contributions are easily distinguishable and separable, as they are all tagged by an author's name and can be edited or deleted at any time.[58]

48 [1978] FSR 254.

49 *Shetland Times Ltd* v *Wills* [1997] FSR 604. For more, see HL MacQueen, '"My tongue is mine ain": Copyright, the spoken word and privacy' (2005) 68 *Modern Law Review* 349.

50 [2009] EUECJ C-5/08 (16 July 2009).

51 See ibid. para 47.

52 [2010] EWHC 3099 (Ch); [2011] EWCA Civ 890.

53 Ibid. para 71.

54 Ibid. para 77.

55 See US Copyright Office, Circular 34, 'Copyright protection not available for names, titles, or short phrases' (reviewed January 2012) <http://copyright.gov/circs/circ34.pdf> last accessed 1 August 2021; *Becker* v *Loew's, Inc*, 133 F.2d 889 – Circuit Court of Appeals (7th Cir 1943); *Glaser v St Elmo*, CC, 175 F.276, 278; *Corbett v Purdy*, CC, 80 F.901; *Osgood v Allen*, 18 Fed Cas No 10,603, 871. See *Warner Bros Pictures v Majestic Pictures Corp*, 70 F.2d 310, 311 (2d Cir 1934); *Harper v Ranous*, CC, 67 F.904, 905; *Patten* v *Superior Talking Pictures*, DC, 8 F.Supp.196, 197.

56 US Copyright Code 17 USC § 101.

57 UK Copyright, Designs and Patents Act 1988, c 48, s 10.

58 S Hetcher, 'User-generated content and the future of copyright: Part two – agreements between users and mega-sites' (2008) 24 *Santa Clara Computer & High Technology Law Journal* 829, 888.

In summary, UK and EU law would be more likely to protect by copyright short-length email content than the US, where emails in the forms of single words and short phrases would not be protected. For the emails that would pass these requirements (e.g. longer private or business letters), copyright in unpublished works would be applicable because the exchange of communication privately between senders and recipients cannot be considered a publication.[59]

Furthermore, authors of literary or artistic works would be entitled to moral rights, in addition to the copyright as an economic right. In the UK, moral rights include the right to be identified as the author (CDPA, s 77), the right to object to derogatory treatment of work (CDPA, s 80) and the right against the false attribution of work (CDPA, s 84). The first two rights subsist as long as copyright lasts (seventy years post-mortem), and the third lasts until twenty years after a person's death (CDPA, s 86). Unless a person waives their moral rights (CDPA, s 87), the right to be identified as the author and the right to object to derogatory treatment of work transmit on death, passing on to the person as directed by will or to a person to whom the copyright passes, or they sit exercisable by a personal representative (CDPA, s 95). The right against false attribution is only exercisable by a personal representative under the same provision of CDPA.

The US Copyright Act contains a similar provision for the types of moral rights conferred to authors. However, these rights expire on the author's death and therefore do not apply to our issue of post-mortem transmission of copyright in email content.[60]

In the UK, therefore, users would have moral rights for seventy or twenty years post-mortem, depending on the type of right, unless waived. Moral rights in the UK, in principle, transmit on death, but there are further relevant issues concerning the limited access of a user's heirs to this content. Since we focus on unpublished work in this chapter (as published works can be accessed elsewhere), the problems with passing them on are identified below.

Analysis

Authors who argue that copyright is the right approach to protecting emails, especially from the post-mortem perspective, analogise emails with letters, claiming that as authors, users should have property in copies and copyright, and the heirs should be able to inherit these just as they would physical letter

[59] As it is private communication and not publication according to the statutory definitions.
[60] § 106A.

boxes.[61] Regarding letters, English law has a long-established principle that the physical medium, paper, can be owned, whereas information contained therein cannot.[62] Similarly, in the US, the law provides that an author retains copyright in the letter, irrespective of the physical possession of the letter.[63]

It is suggested in this chapter that the letter analogy is unsuitable. The problem with it is that there is no physicality in emails (at least not as traditionally conceived by the courts, requiring tangibility or corporeality). Unlike letters, in emails there is only the content, information, and account owned by the service provider; the underlying electrons travelling through the Internet and eventually, the object code, 1s and 0s. The possession of emails is not exclusive (as in letters), and there is a lack of control required for property in the physical medium. Therefore, as rightly remarked by Justice Edwards-Stuart, property and the letter analogy is misplaced here. Perhaps a more acceptable analogy would be metaphorical when discussing the personal value of emails comparable to the value that the family and next of kin attach to letters. Again, the real problem is in the 'letter box', which is an account here. Thus, we face problems of ownership and access since the deceased's emails will probably only exist in an online webmail account that the heirs do not control.

Looking at the content only, copyright in emails would imply that the heirs can control the publication and have copyright in the unpublished works.[64] However, as seen in the following sections, access to emails is not a simple question, and it is often denied to the heirs of a deceased user. Consequently, the potential publication of an unpublished work contained in an email might not be lawful (as required by UK and EU law, see section above), as it would be contrary to the terms and conditions agreed upon by

[61] See J Mazzone, 'Facebook's afterlife' (2012) 90 *North Carolina Law Review* 143, 10, referring to *Grigsby* v *Breckenridge* 65 Ky (2 Bush) 480 (1867). See also US Copyright Code 17 USC § 202.

[62] *Boardman* v *Phipps* [1967] 2 AC 46, 89, 102 and 127. See for example The nineteenth-century case of *Grigsby* v *Breckenridge* (n 61). Under the law, 'the recipient of a private letter, sent without any reservation' acquired 'the general property, qualified only by the incidental right in the author to publish and prevent publication by the recipient, or any other person'. This 'general property', the court added, 'implies the right in the recipient to keep the letter or to destroy it, or to dispose of it in any other way than by publication'.

[63] See for example *Salinger* v *Random House*, 811 F.2d 90 (2d Cir 1987); *New Era Publications* v *Henry Holt & Co*, 873 F.2d 576 (2d Cir 1989); US Copyright Code 17 USC § 202. See WM Landes, 'Copyright protection of letters, diaries and other unpublished works: An economic approach' (1992) 21 *Journal of Legal Studies* 79.

[64] See Copyright, Designs and Patents Act 1988, s 93 ('Copyright to pass under will with unpublished work').

the user. It would, therefore, be unlikely that the heirs, under the current terms and conditions, would be able to lawfully access and publish this work if their access to the account is unlawful.

One could counter-argue that the contract with the service provider ends on death, and since this is not applicable any more, the heirs would be able to publish the work lawfully. This is quite debatable, however. The contract ends, and after a period of inactivity, the account is deleted, so there can be no access regardless. Even if the heirs or personal representatives were to request access before this time expires, the providers would most likely refuse to grant it, allowing access in exceptional circumstances and invoking PMP. This scenario would be similar to an offline one where an heir inherited copyright in letters but had to steal them from the house of the dead person's former lover or publish them against the wishes of the deceased (e.g. Max Brod famously published Franz Kafka's manuscripts, contrary to his expressly stated wish).[65] Would this publication be equally 'unlawful'? In theory, arguably it would, but considerable differences render this analogy inadequate. The publication against an author's wishes is weighted against the interests of the public to gain access to these works in the second scenario. These are, however, comparatively exceptional cases and most content would not belong to this category. The first example is inapplicable to the online world, as it would be harder to gain access to emails, both for practical reasons (it would require a level of technical skills to break into an account) and because the providers would disable access, contractually and using technological restrictions.

Moreover, according to CDPA 1988, s 93, another requirement is that a bequest entitles the beneficiary to 'an original document or other material thing recording or embodying a literary, dramatic, musical or artistic work which was not published before the death of the testator' and consequently to copyright embodied in such a medium. The problem with applying this provision to unpublished email content is that accounts are not being bequeathed and probably cannot be considered material things or property for this definition. It would be complicated to interpret this provision to permit the transmission of unpublished social network works. Even if the will says 'I leave my whole estate to x' or 'the residue', an 'estate' will not be sufficiently wide to include these works. Emails, as suggested in the following section, are not property, nor are the underlying accounts. The requirement of materiality is lacking, and there is a problem of accessing this copyrightable material due to the contractual limitations. The provision would need to be changed or the

[65] See LJ Strahilievitz, 'The right to destroy' (2005) 114 *Yale Law Journal* 781, 830–1.

technology solutions (as proposed in the final section of this chapter) would need to be recognised as an 'entitlement' for CDPA 1988, s 93.

US federal copyright law does not include similar limitations to the UK ones set out above. The US Copyright Code equates the transmission of copyright with the transmission of personal property.[66] There are, however, similar issues of accessing this content and privacy interests of the deceased that might prevent the default transmission of copyright in email content.

McCallig has put forward a different argument against using copyright to address digital remains. He argues that this would jeopardise the PMP of the deceased as, after the expiration of copyright, these digital remains would fall into the public domain and the service providers could use the content as they wished, like the rest of society.[67] McCallig argues that this would discourage people from leaving emails behind, and instead, in fear of public disclosure, they would delete them and leave nothing to their friends, family, historians and society at large.[68] This needs to be treated with caution, however, since the deceased's decision would not be the same in every case imaginable. All this leads to the solutions suggested later in this chapter.

The problem with copyright is that not all emails would meet the requirement of originality, and consequently, we would have a regulatory vacuum for a considerable number of emails. For those emails that satisfy copyright requirements, the problem is that terms and conditions and PMP might clash with this as the heirs might decide to publish something that was not intended to be disclosed by the deceased and is highly personal. This eventually would limit the deceased's autonomy, usually respected for offline assets (through testamentary freedom in this case).[69] Therefore, while copyright protection of emails could be helpful for a fraction of emails that would meet copyright requirements, it does not seem to be a useful solution for the issues surrounding their post-mortem transmission in general. In order to tackle emails as digital assets holistically, an alternative model of protection is required.

[66] US Copyright Code 17 US Code § 201, (1)(d)(1).

[67] McCallig (n 27) 55.

[68] Ibid. 56.

[69] The concept is generally considered to be wider and more significant in common law countries. See for example F du Toit, 'The limits imposed upon freedom of testation by the boni mores: Lessons from common law and civil law (continental) legal systems' (2000) 11 *Stellenbosch Law Review* 358, 360; MJ de Waal, 'A comparative overview' in KGC Reid, MJ de Waal and R Zimmermann (eds), *Exploring the Law of Succession: Studies National, Historical and Comparative* (Edinburgh University Press 2007) 1–27, 14; RA Trevisani and W Breen, '1. USA', KFC Baker, '4. England' and A Steiner, '5. Germany' in International Legal Practitioner, 'Restrictions on testamentary freedom: A comparative study and transnational implications' (1990) 15 *International Legal Practitioner*, 14–16, 20–4 and 24–6.

(b) Property in Emails

As indicated earlier in this chapter, the emails of an average user will contain information, personal data and copyrightable content. Therefore, the following sections will focus on information and personal data, representing a high proportion of email content.

This chapter subsequently demonstrates that the courts use the same analogy as this analysis and primarily discuss the informational character of emails, as their predominant content. 'Information' as understood here (as in most of the analysed and referred to legal scholarship) encompasses data, ideas, facts, news, and so on, and should be taken as an umbrella term for all the diverse types of data and information, not necessarily used in the same manner as in the information science literature.[70] For instance, in the case of emails, information would include non-copyrightable material, such as short phrases, single words and jokes.

Compared with the other case studies in this book, the legal implications of emails have at least initially been addressed by the courts (see the Fairstar case). Nevertheless, the case law in England and the US about the nature of emails, as seen above, is scarce, hard to interpret, decided by lower courts and often contradictory.

The following section will explore black-letter law regarding property in information and personal data. Along with the normative background discussed subsequently, the black-letter law analysis will serve as a basis to explore whether some of the email content represented by information can be considered property.

Information as Property

PERSONAL DATA

In this section, personal data is discussed at the outset because its non-proprietary character is evident. Information, in general, is a less straightforward example, so the discussion will start with this relatively settled issue, at least in terms of black-letter law and the majority of legal scholarship.

Personal data, as noted earlier, forms a very significant part of an email's contents. Therefore, the legal nature of personal data protection will be explored here briefly. Personal data belongs to the broad category of information. This data, however, has some distinctive features as well, as it is

[70] For instance, amongst other criteria they use, Nimmer and Krauthaus distinguish information products by the form of information (summarised data, analysed data, unorganised and organised raw data). See RT Nimmer and PA Krauthaus, 'Information as a commodity: New imperatives of commercial law' (1992) 55 *Law and Contemporary Problems* 103, 110.

intrinsically tied to a person and is the focus of so-called information privacy. Therefore, privacy regimes employ different instruments to award protection to personal data. Models based on human rights, torts or contracts have been widely discussed or applied. European countries mainly perceive privacy and control over personal data as a human right, establishing the EU-wide data protection regime.[71] The United States has been using a tort law model.[72] The tort model has recently penetrated English law in *Google Inc* v *Vidal-Hall & Ors*,[73] where the Court of Appeal recognised the 'tort of misuse of private information'. This decision has the potential to revolutionise English law on the protection of personal data. However, the actual effects of the decision will be tested over time in subsequent cases.

Personal data has not traditionally been considered a type of property. Therefore, the question is purely theoretical, and scholars contemplate it when trying to identify the best regime for protecting personal data.

The property rights model is based on a presumption that personal data in practice already is or should be considered as an asset or commodity.[74] The property rights model for the protection of privacy has been the subject of an extensive debate within the US legal and economic scholarship. Most arguments that the proponents of this system use focus around the main goals of enabling individuals to control the collection, use and transfer of personal data better, to participate in sharing the profit resulting from the use and processing of personal data, and forcing companies to internalise these new costs and make better decisions on investing in the collection and use of personal data.[75] In addition, since property rights are rights *in rem* and have *erga omnes* effect, that is, they can be enforced against anyone, proponents argue that property in personal data could help individuals protect their rights not

[71] Charter of Fundamental Rights of the European Union 2007/C 303/01, Article 8, 7 December 2000. See for example C Prins, 'Privacy and property: European perspectives and the commodification of our identity' in L Guibault and B Hugenholtz (eds), *The Future of the Public Domain* (Kluwer Law International 2006) 223–57, 223; Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) OJ L 119, 04.05.2016; cor OJ L 127, 23.5.2018.

[72] Restatement (Second) of Torts (1977) §§ 652A–652E; AJ McClurg, 'A thousand words are worth a picture: A privacy tort response to consumer data profiling' (2003) 98 *Northwestern University Law Review* 63.

[73] [2015] EWCA Civ 311.

[74] See for example World Economic Forum, 'Personal data: The emergence of a new asset class 5' 7 <http://www3.weforum.org/docs/WEF_ITTC_PersonalDataNewAsset_Report_2011.pdf> last accessed 1 August 2021.

[75] P Samuelson, 'Privacy as intellectual property?' (1999) 52 *Stanford Law Review* 1125, 1128.

only against data controllers[76] but against third parties as well.[77] A further significant benefit of property over torts privacy regime is the principle that there is no need for individuals to demonstrate harm in order to be able to protect their property. Ownership entails the right to control one's property, irrespective of any actual harm potentially caused. Tort regime is based upon the right to restitution for harm. This is true both for the European and the US legal contexts.[78]

There are, nevertheless, significant disadvantages of the property model. Thus, for example, Litman forcefully argues that the property model would promote transactions in personal data, which should be discouraged. Also, alienability as a property feature would vest control in the data miner, rather than the individual, resulting in less privacy eventually.[79] Thus, propertisation would allow the purchaser of personal data to sell it further and, therefore, lessen the owner's control.[80] These arguments, however, are based on a presumption of full alienability of property. This does not have to be the case.[81] To overcome this unwanted consequence of propertisation, some authors propose 'hybrid alienability'[82] or a model resembling the limited rights granted under copyright law rather than a 'traditional "property" right, a right against all comers and all uses'.[83]

Propertisation of personal data arguments originate from the United States. There are some examples of authors discussing the phenomenon in the European context, too. Prins, for instance, characterises the EU regime as utilitarian, as it aims to promote the free flow of personal data, and rather

[76] Article 4(7) of the General Data Protection Regulation.

[77] See BJ Koops, 'Forgetting footprints, shunning shadows: A critical analysis of the "right to be forgotten" in big data practice' (2011) 8:3 *SCRIPTed* 256–8, 256. Or for the US perspective, see C Conley, 'The right to delete' (2010) <https://www.aaai.org/ocs/index.php/SSS/SSS10/paper/view/1158 1 August 2021.

[78] Ibid. 247.

[79] J Litman, 'Information privacy/information property' (2000) 52 *Stanford Law Review* 1283, 1304. See also JE Cohen, 'Examined lives: Informational privacy and the subject as object' (2000) 52 *Stanford Law Review* 1373, 1391.

[80] Samuelson, 'Privacy as intellectual property?' (n 75) 1136.

[81] See for example JB Baron, 'Property as control: The case of information' (2012) 18 *Michigan Telecommunications and Technology Law Review* 367, 382–3; PM Schwartz, 'Property, privacy, and personal data' (2004) 117 *Harvard Law Review* 2055, 2093; S Rose-Ackerman, 'Inalienability and the theory of property rights' (1985) 85 *Columbia Law Review* 931 (arguing that 'alienability is not a binary switch to be turned on or off, but rather a dimension of property ownership that can be adjusted in many different ways'); LA Fennell, 'Adjusting alienability' (2009) 122 *Harvard Law Review* 1403, 1408.

[82] Schwartz (n 81) 2094–8.

[83] Cohen (n 79) 1428–9.

controversially argues that the EU regime is more receptive to a property regime than that of the United States.[84] Similarly, discussing the property model, Purtova argues that it could provide a useful framework, which would enable better control of personal data, even within the EU, notwithstanding the differences in property concepts in both common and civil law countries. She argues primarily for introducing the protective feature of property, its *erga omnes* effect, rather than its alienability feature.[85] In my earlier work, I have argued that due to the introduction of the right to be forgotten and data portability rights, the GDPR is moving towards the propertisation of personal data.[86]

In summary, personal data has never been legally protected as property. Propertisation arguments remained at the theoretical level, without influence on the legislation or case law.[87] Protection of personal data has been provided through data protection legislation, by breach of confidence or as torts. Evidence presented suggests many problems in conceiving personal data as property, the majority of the arguments originating from the general discussion on propertisation of information. The arguments refer to the problem of incidents, that is, information does not share the incidents of physical objects of property. In addition, propertisation may produce monopolisation of information and personal data and clash with freedom of speech. Finally, as demonstrated above, propertisation would contradict the human rights nature of privacy. Propertisation of personal data remains a theoretical construct and, fortunately, a rather unsuccessful one so far.

LAW ON INFORMATION AS PROPERTY

In black-letter law, the general approach is that information is indeed not regarded property. English common law has repeatedly refused to recognise property in information, with some sporadic counter-examples. This section follows the main black-letter arguments against propertising information, focusing on the nature of the civil law protection of information, for the reason that this book has adopted a civil law perspective as a central focal point, which is consistent with the latter exploration of post-mortem ownership of

84 Prins (n 71) 245.

85 See N Purtova, 'Property in personal data: Second life of an old idea in the age of cloud computing, chain informatisation, and ambient intelligence' in S Gutwirth et al. (eds), *Computers, Privacy and Data Protection: An Element of Choice* (Springer Science Business Media 2011) 61.

86 E Harbinja, 'Does the EU data protection regime protect post-mortem privacy and what could be the potential alternatives?' (2013) 10:1 *SCRIPTed* 19.

87 Ibid. 21.

emails. Succession and property and copyright are predominantly civil law issues, so the criminal law discussions are outside the scope of this book. In addition, the courts have traditionally applied different rationales in assessing property for criminal and civil cases.

English common law, in a majority of cases, has not been ready to recognise information as property. For instance, in *Boardman* v *Phipps*,[88] Lord Upjohn maintained 'it is not property in any normal sense, but equity will restrain its transmission to another if in breach of some confidential relationship'.[89] There are some earlier authorities in English common law conferring a proprietary character to particular kinds of information: *Jeffrey* v *Rolls-Royce Ltd*,[90] where Lord Redcliffe treated 'know-how' as an asset distinct from the physical records in which it was contained;[91] *Herbert Morris Ltd* v *Saxelby*,[92] where Lord Shaw of Dunfermline held that trade secrets are 'his master's property';[93] and *Dean* v *MacDowell*,[94] where Judge Cotton held that information constitutes property of the partnership.[95] Nevertheless, Palmer and Kohler state that these authorities do not establish 'a universal characterisation of information as property'.[96] Instead, other areas of law (like contract, tort and breach of confidence) are desired.[97]

The infamous case where an English court found property in information is *Exchange Telegraph Co* v *Gregory & Co.*[98] There, the Court of Appeal upheld an injunction to restrain the defendant broker from publishing information, quotations in stocks and shares from the Stock Exchange, because the information was the plaintiff's property.[99] However, this stance has not been supported by most of the subsequent case law.

In the United States, information as property authorities vary significantly among the individual states, but courts are more willing to recognise certain information status as property. As demonstrated below, examples include the 'fresh news' doctrine found in misappropriation and trade secret law.

88 [1967] 2 AC 46 (HL).
89 Ibid. 128.
90 [1962] 1 AER 801.
91 Ibid. 805.
92 [1916] 1 AC 688 (HL).
93 Ibid. 714.
94 (1878) 8 Ch D 345.
95 Ibid. 354.
96 N Palmer and P Kohler, 'Information as property' in N Palmer and E McKendrick (eds), *Interests in Goods* (Lloyd's of London Press 1993) 7.
97 Ibid. 4–5.
98 [1896] 1 QB 147.
99 Ibid. 152–3 (Lord Esher MR).

In the US case *International News Service* v *Associated Press*,[100] the Supreme Court held that fresh news could be regarded as quasi-property, provided that misappropriation by a competitor constitutes unfair competition.[101] There, the Court used a classical Lockean justification for establishing quasi-property in the news, invoking the pains and labour that were taken advantage of by the plaintiff's competitor. The case was a base for developing the doctrine of misappropriation in the United States 'as a general common law property right against some takings of information of commercial value'. Moreover, while both state and federal courts have adopted the doctrine as a general rule of unfair competition (thus granting protection to objects outside the reach of IP protection), it has been widely criticised for its lack of analysis and superficiality.[102] For example, reputable judges maintain that this doctrine awards protection to objects that the conventional body of IP law refuses to protect,[103] thus potentially restricting access to the public domain while upsetting the balance that IP law attempts to achieve.[104] The doctrine has been a subject of wide controversy in American academic writing.[105] Nonetheless, lower courts have followed the rule of misappropriation outlined in the case of International News Service.[106]

In contrast to the US misappropriation doctrine announced in the case of International News Service, England established the doctrine of breach

[100] 284 US 215 (1918).

[101] Ibid. 236.

[102] SM Besen and LJ Raskind, 'An introduction to the law and economics of intellectual property' (Winter 1991) 5(1) *Journal of Economic Perspectives* 3, 25.

[103] Such as fact, for instance. See *International News Service* v *Assoc Press*, 248 US 215, 250 (1918) (Brandeis, J, dissenting).

[104] This is the balance between incentivising inventions and creativity and rewarding labour, on the one hand, and freedom of expression and access to knowledge and public domain, on the other.

[105] See for example DG Baird, 'Common law intellectual property and the legacy of International News Service v Associated Press' (1983) 50 *University of Chicago Law Review* 411; EJ Sease, 'Misappropriation is seventy-five years old; should we bury it or revive it?' (1994) 70 *North Dakota Law Review* 781; RA Be, 'Dead or alive?: The misappropriation doctrine resurrected in Texas' (1996) 33 *Houston Law Review* 447, 449.

[106] RY Fujichaku, 'The misappropriation doctrine in cyberspace: Protecting the commercial value of "hot news" information' (1998) 20 *University of Hawai'i Law Review* 421, 447. Most of the cases where courts did recognise a misappropriation action involved either appropriation of breaking news or sports performances, likely because that information was a source of revenue for media companies. See for example *Associated Press* v *KVOS, Inc*, 80 F.2d 575 (9th Cir 1935), *rev'd on other grounds*, 299 US 269 (1936); *Pottstown Daily News Publishing Co* v *Pottstown Broad Co*, 192 A.2d 657 (Pa 1963) 202; *Pittsburgh Athletic Co* v *KQV Broad Co*, 24 F.Supp.490 (WD Pa 1938); *Twentieth Century Sporting Club* v *Transradio Press Service, Inc*, 300 NYS 159 (NY Sup Ct 1937).

of confidence to protect valuable information.[107] Breach of confidence is an equitable doctrine that possesses a primary purpose similar to the American 'trade secret law' doctrine.[108] Regarding breach of confidence, English courts seem to agree that information cannot be considered property[109] and, arguably, that protection instead lies in tort law. For example, in *OBG Ltd* v *Allan*, Lord Walker stated, 'Information, even if it is confidential, cannot properly be regarded as a form of property.'[110] Similarly, in *Moorgate Tobacco* v *Philip Morris*, Judge Deane, writing about the breach of confidence, declared that confidence's 'rational basis does not lie in proprietary right'; instead, 'it lies in the notion of an obligation of conscience arising from the circumstances in or through which the information was communicated or obtained'.[111] However, a recent Court of Appeal case tied breach of confidence to IP, deciding that confidential information should be regarded as a type of IP.[112] This is an unusual decision, however, and it does not follow the principles established in the previous and applied in the subsequent case law.[113]

The doctrine of trade secrets is the American counterpart to the breach of confidence in England. The Uniform Trade Secrets Act broadly defines trade secrets as any information that is secret, derives economic value from secrecy, and is the subject of reasonable measures to maintain its secrecy.[114] Generally, trade secrets can include various types of information, such as chemical formulas, source code, methods, prototypes, pre-release pricing, financials, budgets, contract terms, business plans, market analyses, salaries, information about suppliers and customers, experiments, positive and negative

[107] C Waelde et al., *Contemporary Intellectual Property: Law and Policy* (3rd edn, Oxford University Press 2013) 774.

[108] Ibid. 775–6.

[109] See for example M Conaglen, 'Thinking about proprietary remedies for breach of confidence' (2008) 1 *Intellectual Property Quarterly* 82, 84; W Cornish and D Llewelyn, *Intellectual Property: Patents, Copyright, Trade Marks and Allied Rights* (Sweet & Maxwell 2007) 8, 50–4.

[110] *OBG Ltd* v *Allan* [2007] UKHL 21, 275.

[111] *Moorgate Tobacco Co Ltd* v *Philip Morris Ltd* (No 2) [1984] 156 CLR 414, 438. See also *Boardman* v *Phipps* [1967] 2 AC 46, 89–90, 102, 127–8; *Breen* v *Williams* [1996] 186 CLR 71, 81, 91, 111–12, 129; *Cadbury Schweppes Inc* v *FBI Foods Ltd* [1999] 167 DLR (4th) 577, 48; *Douglas* v *Hello! Ltd* (No 3) [2005] EWCA Civ 595 (Eng); [2006] QB 125, 119, 126.

[112] *Coogan* v *News Group Newspapers Ltd and Mulcaire* [2012] EWCA Civ 48.

[113] See the discussion in the following section.

[114] Uniform Trade Secrets Act, 14 ULA 529 § 1(4) (2005). However, US courts tend instead to use the negative definition, defining trade secrets 'by what [they are] not'. See DS Almeling, 'Seven reasons why trade secrets are increasingly important' (2012) 27 *Berkeley Technology Law Journal* 1091, 1107.

experimental results, engineering specifications, laboratory notebooks and recipes.[115] Exploring the evolution of the doctrine in the US, Lemley and Weiser[116] demonstrate the shift from referring to trade secrets as property in the nineteenth century to a combination of contracts, torts and property, and eventually to the unfair competition approach adopted by the Restatement of Torts in 1939.[117] In England, that shift never happened, and trade secrets remain protected by the breach of confidence doctrine.

Nevertheless, the US courts have never really decided whether confidential information or trade secrets are property. Some have held that this inquiry is not essential and that what matters is that the information is protected.[118] Academic debate continues. Similarly, American academics debate whether trade secrets are primarily property, contractual, IP rights, torts, or something that belongs in the criminal law domain.[119] For commentators, trade secret law involves elements of different areas: property, contract, tort, fiduciary duty and criminal law.[120] Other authors and courts describe trade secrets as property.[121] One of the earliest cases deeming trade secrets to be property

[115] See ibid.

[116] MA Lemley and PJ Weiser, 'Should property or liability rules govern information?' (2007) 85 *Texas Law Review* 783, 789.

[117] Restatement of Torts § 757 (1939).

[118] See AE Turner, *The Law of Trade Secrets* (Sweet & Maxwell 1962) 12; *EI du Pont de Nemours Co* v *Masland*, 244 US 100, 102 (1917). See also AE Turner, 'Nature of trade secrets and their protection' (1928) 42 *Harvard Law Review* 254.

[119] See for example WB Barton, 'A study in the law of trade secrets' (1939) 13 *University of Cincinnati Law Review* 507, 558; J Chally, 'The law of trade secrets: Toward a more efficient approach' (2004) 57 *Vanderbilt Law Review* 1269; V Chiappetta, 'Myth, chameleon, or intellectual property Olympian? A normative framework supporting trade secret law' (1999) 8 *George Mason Law Review* 69; DD Friedman et al., 'Some economics of trade secret law' (1991) 5 *Journal of Economic Perspectives* 6; CT Graves, 'Trade secrets as property: Theory and consequences' (2007) 15 *Journal of Intellectual Property Law* 39; JW Hill, 'Trade secrets, unjust enrichment, and the classification of obligations' (1999) 4 *Virginia Journal of Law and Technology* 2; EW Kitch, 'The law and economics of rights in valuable information' (1980) 9 *Journal of Legal Studies* 683; C Montville, 'Reforming the law of proprietary information' (2007) 56 *Duke Law Journal* 1159; CJR Pace, 'The case for a federal Trade Secrets Act' (1995) 8 *Harvard Journal of Law and Technology* 427, 435–42; GR Peterson, 'Trade secrets in an information age' (1995) 32 *Houston Law Review* 385; M Risch, 'Why do we have trade secrets?' (2007) 11 *Marquette Intellectual Property Law Review* 1; MP Simpson, 'Trade secrets, property rights, and protectionism – an age-old tale' (2005) 70 *Brooklyn Law Review* 1121.

[120] Hill (n 119).

[121] See for example Restatement (Third) of Unfair Competition § 39 cmt b (1993) (describing early trade secret theory as based on property rights); *Carpenter* v *United States*, 484 US 19,

is *Peabody* v *Norfolk*.[122] There, the Massachusetts Supreme Judicial Court defined a principle applicable to property law in general. Regarding trade secrets, the court said that the inventor or discoverer of secret information does not have exclusive rights against the public or the good faith acquirer, 'but he has a property in it, which a court of chancery will protect against one who in violation of contract and breach of confidence undertakes to apply it to his own use, or to disclose it to third persons'.[123] Later, the courts continued to connect trade secrets to property. In 1984, the Supreme Court held that trade secrets are property for purposes of the Fifth Amendment's Takings Clause.[124] Additionally, since trade secrets are intangible, the court stated that the existence of a property right depends on the extent to which the trade secret is protected from disclosure.[125] However, despite these references, American trade secret law is still a fusion of tort and unjust enrichment law.[126] Nevertheless, it is worth noting that many authors still argue that trade secrets are IP rights.[127]

These contrasting views of the doctrine demonstrate that US courts and legislators have been more willing to recognise information as property despite the problems discussed earlier in this book. In principle, however, the property paradigm cannot be used for all kinds of information and cases because it mainly relates to commercially valuable information.

Palmer and Kohler note that information might be deemed property in the future, which would provide the courts with an additional instrument.[128] At the moment, if it is recorded in a tangible form, then information can be vindicated using an action for trespass or conversion, that is, property

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26 (1987); *Electro-Craft Corp* v *Controlled Motion, Inc*, 332 NW.2d 890, 897 (Minn 1983); *IMED Corp* v *Systems Engineering Associates Corp*, 602 So.2d (Ala 1992).

122 98 Mass 452, 457–8 (1868).

123 Ibid. 458.

124 *Ruckelshaus* v *Monsanto Co*, 467 US 986, 1002–3 (1984) (citing Locke's Second Treatise and other sources to support the finding that trade secrets can be property). See also Hill (n 119).

125 *Ruckelshaus* v *Monsanto Co*, 467 US 986, 1002. See also *Kewanee Oil Co* v *Bicron Corp*, 416 US 470, 474–6 (1974).

126 See Hill (n 119). The legislation of trade secrets has been quite a recent phenomenon in the US. Before 1980, there was no legislation on this matter. The initial effort to codify and harmonise trade secrets law was that of the Uniform Law Commission, which in 1979 adopted the uniform Trade Secrets Act. In 1996, Congress passed a federal statute criminalising trade secret misappropriation, the Economic Espionage Act 18 USC 55 1831-9. See Uniform Trade Secrets Act, 14 ULA § 529 (2005); DS Almeling et al., 'A statistical analysis of trade secret litigation in state courts' (2011) 46 *Gonzaga Law Review* 57, 67–8.

127 Lemley and Weiser (n 116).

128 Palmer and Kohler (n 96) 206.

remedies. Thus there is a contradiction in not awarding protection when information is intangible.[129]

THE FAIRSTAR CASE

The question of whether new, intangible information such as emails should be regarded as property arose in the recent English case *Fairstar Heavy Transport NV* v *Adkins.* This section will examine the scenarios identified by the court in more detail. Justice Edwards-Stuart's analysis of property in emails illustrates five different scenarios: 1) the title remains with the creator; 2) the title passes to the recipient (analogous to a letter); 3) the recipient had a licence to use the content of the email; 4) the sender has a licence to retain the content and use it; and 5) the title is shared between the sender and the recipient, as well as any subsequent recipient.[130]

In each of these scenarios, Judge Edwards-Stuart focused on the unwanted consequences that would follow if the information in emails were to be recognised as property. Under the first scenario (the *creator* of the email content retains property in it), he noted that the *in rem* nature of property[131] would entitle the sender to request deletion of the email. The judge pointed out that this 'would be very strange – and far-reaching'.[132] Under the second scenario (the *recipient* has the property right), he pointed out, similarly, that the recipient would instead be entitled to request deletion. In addition to that 'strange outcome', he noted that further complications would arise if the email were forwarded to many recipients, who in turn might forward it to even more recipients. There, 'the question of who had the title in its contents at any one time would become hopelessly confused'.[133] Under the third and fourth scenarios, Justice Edwards-Stuart discussed the difference between cases of illegitimate use of information where the email was considered property, whereby one side was given a licence to use it, and cases where there was a misuse of confidential information. He noted that the only difference is that if emails were considered property, it would not be necessary to show that the information was confidential. However, if the information was not confidential, he argued that there would be few situations where people would want to limit its use. Therefore, he concluded that 'there is no compelling need or logic for adopting either of options (3) or (4) and so in relation to

[129] Ibid. 188.
[130] Ibid. 61.
[131] The sender has a claim against the whole world.
[132] *Fairstar Heavy Transport NV* v *Adkins* [2012] EWHC 2952 (TCC) para 64.
[133] Ibid. para 66.

these options I would reject a plea that the law is out of line with the state of technology in the 21st century'.[134]

Under the fifth scenario (shared proprietary interests in email contents), Justice Edwards-Stuart discussed several possible consequences of losing information in emails due to technical issues. He argued that, in such cases, the affected party could not gain access to the parties' servers with whom they shared property in emails. He concluded that 'the ramifications would be considerable and, I would have thought, by no means beneficial'.[135] Accordingly, he found that emails are not to be considered property.[136]

Subsequently, the Court of Appeal has recognised the same conceptual difficulties that property in information would encounter as those that Justice Edwards-Stuart identified.[137] However, the court further asserted that this does not mean that there can never be property in any kind of information. The inquiry depends on the quality of the information in question.[138] This would mean that information such as 'know-how' might be susceptible to property instead of personal data.[139] Accordingly, the court wisely avoided this discussion and decided that the real issue in the case was that of agency and that Mr Adkins, as a former agent of Fairstar, had a duty to allow Fairstar to inspect emails sent to or received by him and relating to its business.[140] In another recent case, the Court of Appeal confirmed this long-standing position and, concerning the customer data contained in a database, maintained restated that information is not regarded as property in English law.[141] Conversely, the medium carrying the information is an object of property.[142] The position is still evolving, and questions around propertisation of intangibles, namely, virtual assets in the form of virtual currencies, are subject to the Law Commission's inquiry at the time of writing.[143]

134 Ibid. para 67.
135 Ibid. para 68.
136 Ibid. para 69.
137 *Fairstar Heavy Transport NV* v *Adkins* [2013] EWCA Civ 886 para 47.
138 Ibid. para 48.
139 Ibid.
140 Ibid. para 46.
141 See *OBG Ltd* v *Allan* [2007] UKHL 21; [2008] 1 AC 1, 275, and the discussion of this topic in S Green and J Randall, *The Tort of Conversion* (Hart 2009) 141–4. See also *Your Response Ltd v Datateam Business Media Ltd* [2014] EWCA Civ 281, 42 (Lord Justice Floyd).
142 *Fairstar Heavy Transport NV* v *Adkins* [2013] EWCA Civ 886.
143 Law Commission, 'Digital assets: Call for evidence' (April 2021) <https://www.lawcom.gov.uk/project/digital-assets/> last accessed 1 August 2021.

In conclusion, it can generally be argued that English courts do not consider information to be property, whereas US law has done so more readily.

Theoretical Considerations of Property in Information

FEATURES OF PROPERTY AND INFORMATION

The analysis in this section will consider whether the legal stances in the United Kingdom and the United States should be reconsidered to recognise property in information. The particular framework used to examine these stances is the most widely accepted conception of property in common law systems: the 'bundle of sticks' theory. In the information context, this theory encompasses the following 'sticks': 1) the control of copying, 2) access, modification, use, and 3) disclosure of data and information.[144]

Providing for all the sticks in the bundle in the information context is usually a complex task, if possible, due to the characteristics that differentiate information from traditional property. The primary differences between tangible and intangible property objects and rights are the following:

- Information is non-rivalrous, and therefore more than one individual can experience it at the same time.[145] This creates the problem of possession, as possession can be concurrent and cannot be transferred as in the case of tangible property.[146]
- Information is often non-separable, acting as a part of an individual right holder.[147]
- As opposed to most of the traditional property objects, copying information is accessible and not very costly.[148] This adds to the difficulty of excluding others from using information.

[144] See Nimmer and Krauthaus (n 70) 113.

[145] See J Boyle, 'The second enclosure movement and the construction of the public domain' (2003) 66(1) *Law and Contemporary Problems* 33, 41; RG Hammond, 'Quantum physics, econometric models and property rights to information' (1981) 27 *McGill Law Journal* 47, 54; MA Lemley, 'Property, intellectual property, and free riding' (2005) 83 *Texas Law Review* 1031, 1032, 1059–60.

[146] See Nimmer and Krauthaus (n 70) 105.

[147] 'Separability' or 'thinghood' means that a thing, in order to be property, must not be conceived as 'an aspect of ourselves or our ongoing personality-rich relationships to others'. See J Penner, *The Idea of Property in Law* (Oxford University Press 1997) 126.

[148] See Hammond (n 145) 54. Usually, with the exception of highly confidential and protected information, where it could be considerably harder and costlier.

- Information is often time-limited, erasable and more fluid, while tangible property arguably has a quality of persistence and permanence.[149]
- Information is not easily excludable and therefore requires legal measures to mandate its excludability.[150]
- Information does not depreciate with use, and some of it sometimes even gains additional value with use, which is not the case with tangible property that devaluates with use.[151]
- The abundance of information is inconsistent with the requirement of scarcity for traditional property.[152]

Therefore, information incidents differ significantly from the incidents of traditional tangible property, identified in Chapter 2. Therefore, applying the traditional property 'sticks' or incidents (such as use, control, exclusion, possession, destruction) to information is difficult. Courts frequently use these arguments to deny the information status of property (as in the Fairstar case and other cases cited in the previous section).

Theories of Property as Justifications for Propertising Information

LABOUR THEORY

This section will continue to explore the potential normative justification for property in information. This analysis will use the significant Western theories for justifying property, examined in Chapter 2, to establish whether these arguments could be used for establishing property rights in information.

This discussion will borrow from the normative justifications for the recognition of IP. This is because the same major property theories have been used to justify both IP rights and propertisation. In addition to the same rationale, IP variants of these theories are even better suited to the information context, given that IP resources share many of the same features as information identified in the section above (they too are intangible, non-rivalrous and non-permanent).

We will first look at labour theory and its applicability to justify the propertisation of information. Lockean arguments are widely used to justify

[149] TJ Westbrook, 'Owned: Finding a place for virtual world property rights' (2006) *Michigan State Law Review* 779, 782–3.

[150] For more on excludability, see Boyle, 'Second enclosure movement' (n 145) 42. For Hammond, public goods are separated from private goods by a principle of exclusion and for information to have this feature, a considerable cost would need to occur. See Hammond (n 145) 54.

[151] See Boyle, 'Second enclosure movement' (n 145) 44.

[152] See Hammond (n 145) 53.

property and IP in common law systems.[153] According to Locke, a creator owns their person and labour, and inventions and intellectual creations are products of labour. Consequently, a creator owns their creations thus generated. However, when applying this to information generally, one encounters problems of labour and creation. Information may be simple facts, news, or other things that could not qualify as IP and would not entail labour being employed, though perhaps this is not true for certain types of information, such as trade secrets or fresh news.[154]

Further, apart from the questionable quality of labour for information generally, Locke's limitation on appropriation (e.g. 'the enough and as good' and spoilage provisos)[155] must be considered. In the case of IP, the 'enough and as good' proviso is likely to be satisfied since information as a resource is not at least theoretically scarce (but if, for instance, it were monopolised, artificial scarcity would be created), and there is no risk of depletion.

Additionally, like IP,[156] some information (knowledge, facts, ideas) is arguably so essential and influential to the public that appropriation harms people.[157] Some information could be necessary for self-preservation and subsistence, as required by Locke; its appropriation would harm the welfare of others, and there would not be enough and as good left for others in the commons if the access to it were to be limited by property rights.[158] This is particularly the case if propertisation would, as suggested by many prominent commentators, jeopardise free speech, expression, sharing of knowledge, and keeping archives and accurate historical records.[159]

For Locke's second proviso, the spoilage principle, IP and information are less subject to waste due to spoilage, at least in the material sense. Furthermore, it is easier to isolate the value of human work than it is for real property, as

[153] See for example J Hughes, 'The philosophy of intellectual property' (1988) 77 *Georgetown Law Journal* 287; W Fisher, 'Theories of intellectual property' in SR Munzer (ed.), *New Essays in the Legal and Political Theory of Property* (Cambridge University Press 2001) 168–201; SV Shiffrin, 'Lockean arguments for private intellectual property' in Munzer (ed.), *New Essays in the Legal and Political Theory of Property* 138–68, 138–9.

[154] See the case law and discussion in the previous section.

[155] CB Macpherson, 'Editor's introduction' in J Locke *Second Treatise of Government: Essay Concerning the True Original Extent and End of Civil Government*, ed. with an intro. CB Macpherson (Hackett 1980) xxi.

[156] WJ Gordon, 'A property right in self-expression: Equality and individualism in the natural law of intellectual property' (1993) 102 *Yale Law Journal* 1533, 1540–78, 1567–70.

[157] See Shiffrin, 'Lockean arguments' (n 153).

[158] J Peterson, 'Lockean property and literary works' (2008) 14(4) *Legal Theory* 385, 387–90, 399.

[159] See Lemley (n 145); Samuelson, 'Privacy as intellectual property?' (n 75); Litman (n 79); Shiffrin, 'Lockean arguments' (n 153); L Lessig, *Code: Version 2.0* (Basic Books 2006).

there is no labouring on independent physical materials.[160] Other authors reject this as a sound explanation, noting that due to the non-rivalrous nature of intangible assets, unlimited production is possible and, consequently, there is a problem with spoilage when the creator is unable or unwilling to use all of these assets (creations) or convert them to money (which does not spoil).[161] In contrast, others claim this is not necessarily correct, asserting that only the complete non-usage of works would qualify for this limitation. Otherwise, creations, even if used in a limited manner, would not spoil in the sense of the Lockean waste proviso.[162] Moreover, many argue that most information would be better shared, contemplated, discussed and developed.[163] Although these arguments apply to information, some types of information (e.g. trade secrets or personal data) may lose their usefulness and function if not used at the right time and exploited properly, a scenario that relates to the tragedy of the commons arguments.

Another potential issue would be the commons, which is very difficult to define abstractly in information. We could borrow from IP theory and consider the commons equivalent to the IP public domain. However, this approach would encounter similar difficulties to those that the public domain faces. The main objection is that the Lockean commons referred to the original appropriation at an earlier stage of societal development and to tangible assets only, thus it is inapplicable to the public domain and, consequently, to the case of information commons.[164]

In summary, labour theory could be employed to justify property in certain kinds of information, where labour that could qualify as adequate for labour theory (e.g. trade secrets) is present. However, its general application to all kinds of information is unsuitable. First, there is a problem with the quality of labour deployed. It is doubtful that 'labouring on information' commons could be analogous with labouring on tangible property resources in Lockean terms. There is also a problem with applying Locke's provisos ('enough and as good' and spoilage), as propertisation of many types of information would not leave enough and as good for others and would face issues of undesirable commodification of information.

160 Hughes (n 153) 51. For a more detailed discussion, see Shiffrin, 'Lockean arguments' (n 153) 140, 141; GS Alexander and EM Peñalver, *An Introduction to Property Theory* (Cambridge University Press 2012) 191–2.

161 BG Damstedt, 'Limiting Locke: A natural law justification for the fair use doctrine' (2003) 112 *Yale Law Journal* 1179, 1182–3.

162 RP Merges, *Justifying Intellectual Property* (Harvard University Press 2011) 58.

163 Shiffrin, 'Lockean arguments' (n 153) 166–7.

164 See ibid. See also Merges (n 162) 35–9.

Further, propertisation would restrict the availability of resources for further creation, may result in restriction of freedom of speech and autonomy, and jeopardise historical records and knowledge sharing. Another problem is the features of the commons. In the case of IP and information, the commons could be seen as the public domain, a concept very different from the Lockean notion of the commons in the initial stage of human development. Further, many would argue that 'labouring' on the public domain and appropriating resources from it would jeopardise further creation, innovation, development and access to valuable resources. Finally, the commons is even more problematic in personal data, as such data is, by definition, tied to an individual and does not belong to everyone. Accordingly, labour theory is even less applicable to personal data.

UTILITARIAN CASE

This section will first explain the utilitarian theories used to justify IP and draw parallels with applying the theory to propertising information. Inspired by Bentham, utilitarians and the neoclassical law and economics school argue that the primary purpose of awarding intellectual IP protection is incentivising innovation.

Utilitarian theory often develops on the notion of free riding and the theory known as the 'tragedy of the commons'.[165] These arguments claim that treating all IP as commons poses the threat of free riding. Free riding disables the owner from internalising the costs of investment in their creations and then recouping them in the market. Landes and Posner maintain that 'the nature of public goods renders them vulnerable for replication and use by free riders, thereby creating the risk of not recovering the production costs'.[166] If IP protection were not awarded, those who did not create could still enjoy the benefits.

On the other hand, the creators would be unable to recover the investment, efforts and costs they incur in the process of creating and innovating.[167] According to the theory set forth by Demsetz, this phenomenon should be eliminated as it represents the negative externalities that should be internalised, as free riders obtain benefits from someone else's investment.[168] Thus,

[165] H Demsetz, 'Toward a theory of property rights' (1967) 57 *American Economic Review* 347, 347–59; S Kieff, 'Property rights and property rules for commercializing inventions' (2001) 85 *Minnesota Law Review* 697; Kitch (n 119) 683; WM Landes and RA Posner, 'An economic analysis of copyright law' (1989) 18 *Journal of Legal Studies* 325, 326.

[166] Landes and Posner (n 165).

[167] Ibid. 353–4.

[168] For a commentary, see Lemley (n 145) 12.

according to Landes and Posner, IP protection increases socially valuable IP production.[169]

Landes and Posner, however, do recognise the need to strike a balance between public and private interests as the central problem of copyright law.[170] The most important indicator is the net welfare approach, which seeks 'the greatest good for the greatest number'.[171] For example, in the context of copyright, this means that IP rules should be geared to 'maximize the benefits from creating additional works minus both the losses from limiting access and the costs of administering copyright protection'.[172]

Lemley offers an excellent critique of this theory, arguing that it is based on a 'fundamental misapplication of the economic framework set out by Harold Demsetz'.[173] He explains the difference between IP and tangible property, which does confer negative externalities, and costs for owners and non-rivalrous resources.[174] IP, unlike tangible property, presents an issue of internalising positive externalities.[175] This is because the consumption of creative output by many is desirable, as it enriches society and culture.[176] Lemley maintains that positive externalities are impossible to internalise, and there is no reason to do that; therefore, 'if "free riding" means merely obtaining a benefit from another's investment, the law does not, cannot, and should not prohibit it'.[177] Alexander also supports this stance.[178]

Other opponents of this line of reasoning find that the goal of striking an appropriate balance between private and public in the copyright context cannot be entirely realised under utilitarian justifications.[179] The problem in these justifications for copyright, as Boyle or Zemer would argue, is that they emphasise the property component as a precondition for incentivising creation,

169 Ibid.
170 Landes and Posner (n 165) 326.
171 J Bentham, *An Introduction to the Principles of Morals and Legislation*, ed. JH Burns and HLA Hart (Athlone Press 1970) 12–13.
172 Landes and Posner (n 165) 184.
173 Ibid. 18.
174 Lemley (n 145) 2.
175 This issue prevents the positive externalities from being enjoyed by the public. Ibid
176 Ibid. 56
177 Ibid. 24.
178 See Alexander and Peñalver (n 160) 184.
179 L Zemer, 'On the value of copyright theory' (2006) *Intellectual Property Quarterly* 1, 55–71; Lemley (n 145) 1066–7.

thus disregarding the role of the public domain[180] or the self-interested motivation for creation without legal incentives.[181]

In addition, critics of this approach claim that it is not true that IP protection is always necessary to recover the cost of innovation.[182] This claim mainly relates to patents, as they are understood to require the highest level of investment compared with other IP rights.[183] To support this argument, critics present examples of hard-to-copy or reverse engineer innovations (e.g. integrated circuits and hardware protected by obfuscation techniques). In addition, some innovators recoup profits by keeping their innovations secret, or other inventors may distribute products in a way that is expensive to replicate (e.g. motion pictures on film stock or encrypting data). Finally, in a constant circle of innovation, there is a phenomenon where first movers can recoup costs (e.g. the news, fashion and trade secrets).[184]

Applying this theory to information, utilitarian arguments, especially the free riding concept, could be used to justify propertisation of some kinds of information (e.g. trade secrets). Nevertheless, the notion of free riding does not apply to all information and personal data, and it cannot be used as an argument for propertising either of these. The reason for this is that information and personal data, at least those included in digital assets, do not require investment as IP usually does, and free riders, therefore, would not prevent anyone from recouping the non-existent investment. Also, the incentivising innovation and creation of information arguments might not work perfectly, especially in the case of online, digital information where the phenomenon of information overload is considered. Many authors argue that there is no need to incentivise information that is already over-produced.[185] It is also self-evident that incentivising the production of personal data is unnecessary,

[180] J Boyle, *Shamans, Software and Spleens: Law and the Construction of the Information Society* (Harvard University Press 1996) 244.

[181] SV Shiffrin, 'The incentives argument for intellectual property protection' (2009) 4 *Journal of Law, Philosophy and Culture* 45, 49.

[182] Ibid. 51, 57.

[183] See Landes and Posner (n 165) 350.

[184] See Alexander and Peñalver (n 160) 188; WM Cohen, RR Nelson and JP Walsh, 'Protecting their intellectual assets: Appropriability conditions and why U.S. manufacturing firms patent (or not)' National Bureau of Economic Research, Working Paper No 7552, 2000) 13.

[185] See MJ Eppler and J Mengis, 'The concept of information overload: A review of literature from organization science, accounting, marketing, MIS, and related disciplines' (2004) 20(5) *The Information Society: An International Journal* 325; MS Oppenheimer, 'Cybertrash' (2011–12) 90 *Oregon Law Review* 1; TA Peredes, 'Blinded by the light: Information overload and its consequences for securities regulation' (2003) 81(25) *Washington University Law Quarterly* 417.

as it has already been shared and used on a large scale online, and digital assets contain a vast amount of such data. Instead, there are generally more significant concerns over how to control and share less personal data online. In addition, all the utilitarian arguments face the same objections as IP, that is, they should be non-rivalrous and, as is the case with information sharing and enriching culture in the IP context, internalising positive externalities as should be avoided. Moreover, the tragedy of the commons objection is not applicable either, especially to personal data, since there is no commons to start with and such data is intrinsically related to a person. Utilitarian arguments are therefore weak justifications for the propertisation of information.

PERSONHOOD THEORIES

Personhood theories of personal and IP represent a solid alternative to the previous theories. They emphasise a personal, non-pecuniary version of IP, concluding that intellectual creation is an expression of one's self.[186] Discussing whether ideas and creations can be considered things and property, Hegel notes that they can be contracted but are inward and mental. It is hard to describe such a possession in legal terms 'because its field of vision is as limited to the dilemma that this is "either a thing or not a thing" as to the dilemma "either finite or infinite"'.[187] Further, Hegel concludes that even though talents and accomplishments are internal and are owned by the mind, 'by expressing them it may embody them and this way they are put in the category of "things"'.[188] Hughes finds this theory appealing, noting that 'the Hegelian personality theory applies more easily because intellectual products, even the most technical, seem to result from the individual's mental processes'.[189]

As noted in Chapter 2, one of the most prominent contemporary theories based on Hegelian arguments is Radin's personhood theory. Radin divides property into fungible and personal categories and asserts that 'the more closely connected with personhood, the stronger the entitlement'.[190] Therefore, according to this theory, there are powerful grounds for strong IP protection. However, the problem here is whether this theory justifies the alienability of creative works or limits it. Fisher, for instance, wonders if an author can restrict further communication of her work once she has revealed

[186] See Hughes (n 153) 330 ('An idea belongs to its creator because the idea is a manifestation of the creator's personality or self.').
[187] GWF Hegel, *The Philosophy of Right*, trans. TM Knox (Oxford University Press 1967).
[188] Ibid.
[189] Hughes (n 153) 365.
[190] MJ Radin, 'Property and personhood' (1982) 34 *Stanford Law Review* 957, 986.

it and whether it 'nevertheless continues to fall within the zone of her "personhood"'.[191] Netanel replies that 'authors in fact have a strong interest in continuing sovereignty over their expression'.[192] Weinreb, conversely, maintains that the expression, after having been communicated, takes a life of its own and would 'come down to an economic interest, the author herself commodifying what was declared uncommodifiable'.[193] A similar objection could be applied to personal data in particular. Thus, even though personal data is intrinsically tied to a person, propertisation, even in the form of personal property, might not be the best solution, as it would commodify such data and disable users' control over it.

Other critics note that Hegel's theory lacks a romantic view of a creator and, under this theory, IP is just like other species of property in that it is strictly formal and abstract.[194] Furthermore, according to Schroeder and Alexander, Hegel says nothing about whether IP should be protected. They assert that Hegel just claims that if society adopts such a regime, it is coherent to formulate it in terms of actual property, rather than some *sui generis* rights.[195]

Personhood theory applies to information to an extent. However, because of their non-personal, commercial character, some kinds of information (such as trade secrets and fresh news) cannot be justified under this theory. In contrast, other information (such as personal data that is intrinsically tied to an individual) can perhaps find better support under this approach. Nevertheless, this suggestion is not free from problems either, and as identified above, it can lead to the commodification of information and personal data.

In summary, even if the normative obstacles were overcome and either the labour or personhood theories were to be applied, propertisation would face the problem of the undesirable commodification and monopolisation of information and personal data. There, property would not provide any desirable protections and would arguably jeopardise free speech.[196]

To conclude, the non-copyrightable content of emails, information and personal data is not (doctrinal argument) and should not be (normative

[191] Fisher (n 153) 190.

[192] See NW Netanel, 'Copyright alienability restrictions and the enhancement of author autonomy: A normative evaluation' (1993) 24 *Rutgers Law Journal* 347, 400.

[193] L Weinreb, 'Copyright for functional expression' (1998) 111 *Harvard Law Review* 1149, 1222.

[194] See Alexander and Peñalver (n 160) 199.

[195] Ibid. 189.

[196] See Baron (n 81); Radin (n 190); A Rahmatian, 'Copyright and commodification' (2005) 27(10) *European Intellectual Property Review* 371, 371–8; C May, 'Between commodification and "openness": The information society and the ownership of knowledge' 2005 (2) *Journal of Information Law & Technology*.

argument) considered property. Other safeguards established for information and personal data should be utilised to protect emails (breach of confidence, trade secrets, data protection). This, tentatively, means that the non-proprietary character of emails to a large extent precludes their post-mortem transmission. Further analysis in this chapter will demonstrate some problems with this one-size-fits-all conclusion.

6.4 Allocation of Ownership in Emails

This section will analyse the allocation of ownership/property/copyright (these terms are to be taken provisionally, and they reflect how providers refer to users' content and not the analysis above, which concluded differently) and access to users' email contents as established by service provider contracts. After discussing whether emails are property, this section will aim to answer the question of who gets these property rights or copyright according to the contracts users conclude before starting to use emails. The allocation and access are essential as they prevent or, rarely, allow the deceased users' personal representatives or next of kin access to the content.[197]

Unlike the previous case study (virtual worlds), where providers refuse to recognise any right in users' content, the question of ownership of the content users 'upload, submit, store, send or receive' is much clearer in this case study. Service providers recognise users' ownership of their content, and they claim a worldwide, royalty-free and non-exclusive licence to use and perform other actions with the content. This is, in principle, valid for all three leading service providers analysed in this chapter.[198] There are some minor differences, however. When stating ownership, Google refers to all content, whereas Microsoft mentions email explicitly as content that users own.[199] The other difference is that Google and Microsoft ToS apply to all content, whereas in Yahoo!'s ToS, for instance, the corresponding provision and the licence apply only to 'photos, graphics, audio or video'.[200] For all other content that users 'submit or make available for inclusion on publicly accessible areas of the Yahoo Services',[201] Yahoo! retains 'the worldwide, royalty-free, non-exclusive,

[197] Harbinja, 'Emails and death' (n 10).

[198] Google, 'Terms of service' (effective 31 March 2020) <http://www.google.com/intl/en-GB/policies/terms/> last accessed 1 August 2021; Yahoo!, 'Terms of service' <https://policies.yahoo.com/ie/en/yahoo/terms/utos/index.htm> (legacy terms that still apply to those who have accepted them) last accessed 1 August 2021.

[199] Microsoft, 'Services agreement, Outlook 3.1' <http://windows.microsoft.com/en-gb/windows-live/microsoft-services-agreement> last accessed 1 August 2021.

[200] Yahoo!, 'Terms of service' (n 198) para 9.2.

[201] Ibid.

perpetual, irrevocable, and fully sub-licensable licence'.[202] Emails do not seem to belong to any of the categories, and the only provision applicable is the general one, where users generally retain ownership over the content. Notwithstanding the discussion about information and personal data in the previous section, this general provision is misleading and is potentially applicable to copyrightable content only.

The issue appears clear: content is copyrightable if it fulfils the requirements of, and/or it can be protected by, the tort of misuse of confidential information, trade secrets, data protection or publicity rights, depending on the qualities of the actual content, and it is 'owned' by the user according to the ToS. The account, however, is not the property of an individual. The individual has a right to use it by contract but does not have a right to transfer it,[203] and the account remains the service provider's property.[204] It could be argued that the username and/or password could also be owned by an individual (like a key to one's property, an accessory), but the actual underlying system that enables the functioning of the account is the IP of the service provider. In summary, it is unclear what these ToS describe, but it is probably access to emails and their retention on the service providers' servers.

Even if we set aside the difficulties in proclaiming intangible objects as property, the fact here is that a service provider owns the account and email servers, and the user only uses these facilities under terms and conditions. Therefore, the account cannot be transferred as the sender of an email does not own the account in the first place.[205]

(a) Intermediary Contracts and Transmission of Emails on Death

The current terms of service of the leading webmail providers offer different and contradictory options for transmitting emails on death. This section will canvas the policies relating to deceased users of the major email providers chosen as case studies in this chapter.

202 Ibid. para 8.

203 Microsoft, 'Services agreement' (n 199).

204 See Google, 'Terms of service' (n 198). See similarly J Lamm, 'Planning ahead for access to contents of a decedent's online accounts' *Digital Passing Blog* (9 February 2012) <http://www.digitalpassing.com/2012/02/09/planning-ahead-access-contents-decedent-online-accounts/> last accessed 1 August 2021.

205 In accordance with the legal principle of *nemo dat*. See *Henderson & Co* v *Williams* [1895] 1 QB 521; *Shaw* v *Commissioner of Metropolitan Police* [1987] 1 WLR 1332; *Farquharson Bros* v *C King & Co Ltd* [1902] AC 325; *Mercantile Bank of India Ltd* v *Central Bank of India* [1938] AC 287, upholding *Farquharson*; *Central Newbury Car Auctions Ltd* v *Unity Finance Ltd* [1957] 1 QB 371.

Yahoo!, as seen in the Ellsworth case, refuses to pass on logins, passwords and the content of the messages to heirs.[206] In its deceased user policy, it expressly refers to privacy of the deceased and the non-transferable nature of the account ('Pursuant to the TOS, neither the Yahoo account nor any of the content therein are transferable, even when the account owner is deceased').[207] A personal representative or an executor can only request an account to be closed, billing and premium services suspended, and 'any contents permanently deleted for privacy'.[208]

Google permits passing on the contents of a Gmail account to the deceased's heirs but only in exceptional circumstances.[209] Google explicitly protects the deceased's privacy, mentioning this on multiple occasions in the relevant section on its help page.[210] However, in addition to this general policy, Google has recently launched a pioneering 'code' solution for post-mortem transmission of emails and other services. Its Inactive Account Manager (IAM) introduced in April 2013 enables users to share 'parts of their account data or to notify someone if they've been inactive for a certain period of time'.[211] Via this procedure, the user can nominate trusted contacts to receive data if they have been inactive for the time chosen (three to eighteen months). After their identity has been verified, the trusted contacts are entitled to download the data the user has left them. The user can also decide only to notify these contacts of the inactivity and delete all their data. There is a link directly from the user's account settings (in the data tools section) to IAM.

A fundamental problem with IAM is the verification of trusted contacts. Text messages are sent to trusted contacts (mandatory), and in addition, the user can choose to be notified of their timeout by email. This could prove problematic as a phone number is not an official way of proving identity. Furthermore, people tend to change their mobile phone providers and numbers, and some of them may never be able to be notified, so the user's wish will not be honoured in these cases. This problem has been recognised by Google,

[206] See the discussion above of Yahoo!'s terms of service (n 198) and the Ellsworth case. See also Yahoo!, 'Options available when a Yahoo account owner passes away' <https://help.yahoo.com/kb/mobile/SLN9112.html?impressions=true> last accessed 1 August 2021.

[207] Ibid.

[208] Ibid.

[209] Google, 'Submit a request regarding a deceased user's account' <https://support.google.com/accounts/contact/deceased?hl=en&ref_topic=3075532&rd=1> last accessed 1 August 2021.

[210] Ibid.

[211] Google, 'About Inactive Account Manager' <https://support.google.com/accounts/answer/3036546?hl=en> last accessed 1 August 2021.

too, but the company considers the two-factor authentication suitable for the time being before better ways of identification are employed (e.g. identity tokens, fingerprint identification).[212]

A second problem is a transfer of content via IAM to trusted contacts, which would provide for different beneficiaries than the offline ones. It would, perhaps, include friends and a digital community that would not be considered in an offline distribution of property. This further leads us to the connected problem of conflicts between the interests of the deceased (expressed in their digital will or traditional will), family (as heirs) and friends (with whom the deceased might have firmer ties online than with their heirs offline, as research suggests).[213] This issue becomes more complex in the different jurisdictions where Google's users are based worldwide. Google, however, considers itself bound primarily by Californian probate law in this and other similar cases (e.g. requesting a US court order in the access procedure described earlier).[214] This is understandable, especially as the service was designed and developed initially by Google's developers and 'techies' (staff working on the development of technology mainly), without significant input from the legal and policy departments.[215] Their input came later, and Google is still contemplating the viability and scalability of the service. Google argues that the legislation should be technologically neutral, allowing for the development of similar technologies that appropriately tackle post-mortem issues.[216] Overall, this could be welcomed as a good development that respects autonomy and allows users much more control over their data on death. This is especially important as Google stores an enormous amount of users' data through all of its services (Gmail, YouTube, Google+, Google Drive, Photos).

In line with the other providers, Microsoft offers no rights of login or access to the representatives of deceased users.[217] Its 'Next of Kin Process' provides the release of Outlook.com content (all emails and their attachments, address book, and Messenger contact list) to the next of kin of a deceased or incapacitated user and/or closure of the Microsoft account. Microsoft refuses to provide the password and to transfer ownership of the account to the next of kin. Instead, in an earlier version of its terms, it offered to release

212 Interview transcript, Google employee (on file with the author).

213 See E Kasket, 'Access to the digital self in life and death: Privacy in the context of posthumously persistent Facebook profiles' (2013) 10:1 *SCRIPTed* 7.

214 Ibid.

215 Interview (n 212).

216 Ibid.

217 See Mazzone (n 61) n98.

the content on a DVD, shipped to the next of kin.[218] It has slightly revised these terms to include explicit information advising users to seek legal help to access the deceased's account.[219]

(b) Analysis

First, the above discussion has demonstrated that email service providers expressly recognise users' ownership of their email content. The service providers claim a worldwide, royalty-free and non-exclusive licence to use and perform other actions with the content.

Second, among email service providers, a norm has emerged of allowing heirs discretionary access to content in the accounts of deceased users, but no formal property right is recognised or transmitted. There is usually an express prohibition of transfer of account login details and the account itself. This is inconsistent with the declaratory recognition of users' ownership. Google provides, exceptionally, for users' control over their content post-mortem through IAM. *Prima facie*, the prohibition on accessing the deceased user's account is not an issue, as the licence to use the account ends with the user's death and, clearly, the account owner (the service provider) could stop others from accessing it. Nevertheless, this contradicts the service providers' explicit provisions on users owning their content because this ownership excludes transmission on death, which is one of the main features of property and ownership.

Third, none of the providers allows access to the full account itself, invoking privacy protection and the Stored Communications Act. The Act, however, does not prevent disclosure in the cases when there is consent from the user or if they wish to disclose the data voluntarily.[220] This is the argument used by Google to justify its approach in IAM. In addition, a court might order access to the account, as attempted in the Ellsworth case.

218 Microsoft, 'My family member died recently/is in coma, what do I need to do to access their Microsoft account?' (Ael_G. asked on 15 March 2012) <http://answers.microsoft.com/en-us/outlook_com/forum/oaccount-omyinfo/my-family-member-died-recently-is-in-coma-what-do/308cedce-5444-4185-82e8-0623ecc1d3d6> last accessed 1 August 2021.

219 Microsoft, 'Accessing Outlook.com, OneDrive and other Microsoft services when someone has died' <https://support.microsoft.com/en-us/office/accessing-outlook-com-onedrive-and-other-microsoft-services-when-someone-has-died-ebbd2860-917e-4b39-9913-212362da6b2f?ui=en-us&rs=en-us&ad=us> last accessed 1 August 2021.

220 See 18 USC § 2701 – Unlawful access to stored communications; § 2702 – Voluntary disclosure of customer communications or records.

6.5 Post-Mortem Privacy

An important phenomenon that arises from considering the transmission of emails is post-mortem privacy. It will be discussed herein because it is one of the features affecting rules on the transmission of assets on death. As seen in the previous section, service providers refer to PMP (without using the term itself) when refusing to transfer a deceased's account. In addition, as argued in Chapter 3, this notion deserves legal recognition beyond the piecemeal and patchy approach that is dominant at the moment. The theoretical and doctrinal analysis from Chapter 3 and my earlier findings applies to this chapter.[221]

Concerning the main topic of this chapter, PMP serves as a basis for arguing against the general transmission of emails on death without the deceased's consent, that is, by default, through the laws of intestacy or by requiring the intermediaries to provide access to the deceased's emails. PMP is recognised explicitly in the court's decision in the Ellsworth case and the service providers' ToS. Therefore, recognition of PMP questions the default position of using transmission by way of the laws of succession for some kinds of digital assets (those containing a vast amount of personal data, such as emails and social networks).

Rather than using the current offline defaults, it is argued that more nuanced solutions for the transmission of emails are needed. These solutions will be explored in the following section. It will aim to account for the privacy interest of the deceased, thus upholding the user's autonomy and expression of their wishes regarding what happens to their emails after their death. Although not prioritised currently, these interests should be considered when suggesting solutions for the transmission of digital assets in general. This proposition is in line with the underlying principle of this book, autonomy, which should be extended on death in the form of PMP, analogous to its extension in the form of testamentary freedom.

In the case of emails, which consist predominantly of personal data, this book recommends protecting autonomy and privacy by setting up and recognising the in-service options for PMP protection (e.g. Inactive Account Manager) legally. Theories of autonomy discussed in Chapter 3 support the in-service solutions. Autonomy, or free will, practically translates into privacy interests and the user's control of what happens to the personal data in their accounts. These privacy interests should be extended post-mortem, analogous to the post-mortem extension of autonomy reflected in respect of testamentary freedom. For emails, such an extension could be achieved via technological, in-service solutions, which would be recognised by the law of succession

[221] Harbinja, 'Emails and death' (n 10).

(e.g. Inactive Account Manager; see the section below). This way, effect could be given to the autonomous wishes expressed by a user of the technology, enabling the protection of the user's PMP. The following section explains how this would be technologically viable and how the law could effect it.

6.6 Solutions for the Transmission of Emails on Death

This section will offer some tentative solutions concerning the transmission of emails on death. More general solutions will be offered in the last chapter.

As noted in the previous section, email accounts contain much more personal data and information relating to the deceased than could be imaginable offline in the case of letters, for instance. Users' online lives are stored and controlled by service providers. It is argued here that any solution should shift the control to users. The old rules of succession, aiming to account for individuals' wishes and balancing these interests with the interests of their heirs, are not applicable *per se*, mainly because of the highly personal and individualistic nature of these digital assets.

It is argued here that the best solution to the problems identified in this chapter is to respect and foster the user's autonomy and create technological solutions that would implement this endeavour. The solutions could resemble Google's IAM, but there is also scope for further technological and policy innovation. In addition, adequate legislation is necessary for this, aiming to neutralise the potential conflicts between the laws and the code solutions. In this respect, the US Uniform Law Commission work is a good start, but as noted further in the Conclusion, the outcome of this work is still uncertain, and its influence would be significant only if the provisions of the Uniform Act were adopted as laws of the individual states. There is also a need for legislation to recognise these services and remove the obstacles for transmission created by copyright law at the UK level.

Along with the probate reforms, an ideal solution would recognise PMP and protect the deceased's personal data. In Europe, this could be done at the EU level by envisaging the deceased's personal data protection in future data protection reforms. This protection could be time-limited (e.g. fifty or seventy years post-mortem like copyright) and again, recognise the user's autonomy and pre-mortem choice (e.g. mandating service providers to require the choice to be expressed during the registration process, or on some other appropriate occasion).